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1. [*Ji Chang Son, et al. vs. Tesla Motors, Inc; 2019 Jury Verdicts LEXIS 147074*](#)

Client/Matter: -None-

Ji Chang Son, et al. vs. Tesla Motors, Inc; 2019 Jury Verdicts LEXIS 147074

8:16-cv-02282

May 27, 2018

Title: Product Liability

Published: December 13, 2019

Result: SETTLEMENT Product liability Defective product Deceptive marketing Electric car maker sued over 'autopilot' feature Damages for \$ 5,000 add-on systems.

Award: 5000

Injury: Product liability, Damages, Defective products

Practice Area: Energy and Utilities Law; Torts

State: California

Court: U.S.D.C. - Central District of California

Judge: Beth Labson Freeman

Plaintiff Counsel

Youngwoon Jung, Attorney For Plaintiff, Law Offices of Yohan Lee, Buena Park, CA; Benedict O Kwon & Stephen L Ram, Attorney For Plaintiff, Stradling Yocca Carlson and Rauth PC, Newport Beach, CA; Richard D McCune & David C Wright, Attorney For Plaintiff, McCune Wright Arevalo LLP, Ontario, CA

Defendant Counsel

Sean P Gates, Attorney For Defendant, Charis Lex P.C., Pasadena, CA; Penelope A Prevolos, Attorney For Defendant, Morrison and Foerster LLP, San Francisco, CA

Case Summary

In this action, a car manufacturer was accused of misrepresenting a self-driving feature sold with its automobiles. The matter was resolved with a settlement. The defendant, Tesla, Inc., is an American multinational corporation that specializes in electric vehicles, energy storage and solar panel manufacturing based in Palo Alto, California. The defendant's Tesla Model S and Model X electric cars are sold with an optional \$ 5,000 ;Autopilot driver assistance system;, which includes functionality including automated emergency braking, and side-collision warning. The plaintiffs, six Tesla Model S and Model X owners, alleged that defendant's Autopilot system was essentially unusable and demonstrably dangerous. In 2017, the plaintiffs filed suit in the U.S. District Court for the Central District of California against the defendant Tesla. The defendant was accused of misrepresentations regarding its product, including its Autopilot driver assistance system. The plaintiffs later sought class certification for all members who, like them, sought recovery of damages for the \$ 5,000 for automated emergency braking, side-collision warning, and the autopilot software. The defendant denied the accusations. The matter was ultimately resolved with a settlement in which the defendant agreed to pay \$ 20 to \$ 280 to class members who paid for the autopilot upgrade during 2016 and 2017, as well as \$ 5 million in attorneys' fees and other costs.

Reference: Ji Chang Son, et al. vs. Tesla Motors, Inc. Case no. 8:16-cv-02282; Judge Beth Labson Freeman, 05-27-18. Attorney for plaintiff: Youngwoon Jung of Law Offices of Yohan Lee in Buena Park, CA. Attorney for plaintiff: Benedict O Kwon & Stephen L Ram of Stradling Yocca Carlson and Rauth PC in Newport Beach, CA. Attorney for plaintiff: Richard D McCune & David C Wright of McCune Wright Arevalo LLP in Ontario, CA. Attorney for

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defendant: Sean P Gates of Charis Lex P.C. in Pasadena, CA. Attorney for defendant: Penelope A Preovolos of Morrison and Foerster LLP in San Francisco, CA.

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